

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE CREATING SECTION 9.04.070, INTERFERENCE WITH EMERGENCY CALLS; INTERFERENCE WITH EMERGENCY REPORTING SYSTEM, OF CHAPTER 9.04, OFFENSES BY OR AGAINST PUBLIC OFFICERS AND GOVERNMENT, OF TITLE 9, PUBLIC PEACE AND WELFARE, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 9.04.070, Interference with Emergency Calls; Interference with Emergency Reporting System, of Chapter 9.04, Offenses by or Against Public Officers and Government, of Title 9, Public Peace and Welfare, of the Cheyenne City Code is hereby created to read as follows:

9.04.070 - Interference with emergency calls; interference with emergency reporting system

- A. A person commits a misdemeanor punishable by imprisonment for not more than six (6) months, a fine of not more than seven hundred fifty dollars (\$750.00), or both, if he or she knowingly obstructs, prevents, hinders or otherwise interferes with the making or completion of a telephone call to a 911 system or other telephone or radio communication by another person to any law enforcement agency to request protection or other assistance from the law enforcement agency or to report the commission of a crime.
- B. A person commits a misdemeanor punishable by imprisonment for not more than six (6) months, a fine of not more than seven hundred fifty dollars (\$750.00), or both, if he or she knowingly calls a 911 system for a purpose other than to report a situation that he or she reasonably believes requires prompt service in order to preserve or protect human life, health or property.
- C. For purposes of this section "911 system" means a telephone system consisting of network, database, services and equipment, using the single three-digit number 911 for reporting police, fire, medical or other emergency situations and enabling the users of a public telephone system, other technology or wireless telecommunications system to reach a public safety answering point to report emergencies by dialing 911.

Section 2. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 3. That this ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
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